

HOUSE No. 2871

The Commonwealth of Massachusetts

PRESENTED BY:

Vanna Howard

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to certain option B and option C retirees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/8/2025</i>

HOUSE No. 2871

By Representative Howard of Lowell, a petition (accompanied by bill, House, No. 2871) of Vanna Howard relative to certain public employee retirement system option B and option C retirees. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2560 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to certain option B and option C retirees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of any general or special law to the
2 contrary, a member as defined in section 1 of chapter 32 of the General Laws, who retired before
3 July 1, 2004 and is receiving a lesser retirement allowance in accordance with the terms of
4 Option (b) or Option (c) of subdivision (2) of section 12 of said chapter 32, from a retirement
5 system that accepts the provisions of this act, shall have the member's retirement allowance,
6 exclusive of any cost of living adjustments, increased by 4 per cent for Option (b) allowances
7 and 12 per cent for Option (c) allowances. Any retirement system may accept the provisions of
8 this act by a majority vote of the board of each such system, subject to the approval of the
9 legislative body. For the purposes of this act, "legislative body" shall mean, in the case of a city,
10 the city council in accordance with its charter, in the case of a town, the town meeting, in the

11 case of a county, the county retirement board advisory council, in the case of a region, the
12 regional retirement board advisory council, in the case of a district, the district members, and, in
13 the case of an authority, the governing body. For purposes of this act, the state teachers' and state
14 employees' retirement systems shall be deemed to have accepted the provisions of this act.

15 SECTION 2. The provisions of this act shall be prospective from the effective date of this
16 act and shall not entitle any member or spouse of a deceased member to any retroactive benefits.